

PLSC 476: Empirical Legal Studies

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Courts and Public Opinion

The Case *Against* Influence

- Institutional Factors (tenure, etc.)
- Constitutional Constraints
- Judicial Norms
- Demographic Differences
- Diffuse Signals

Courts and Public Opinion

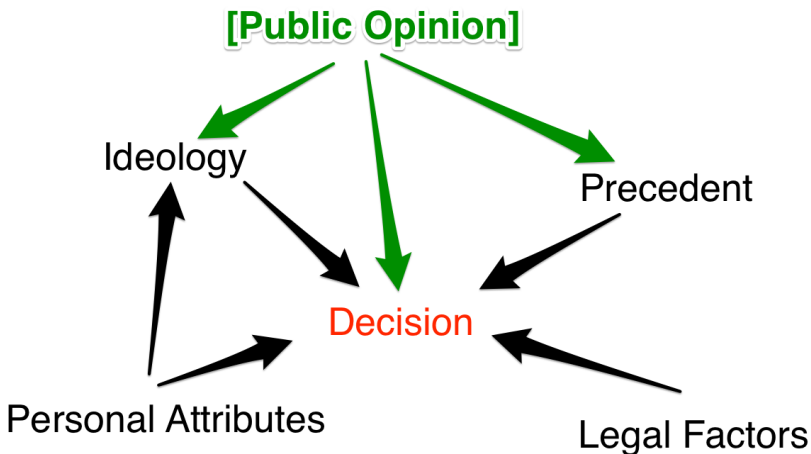
The Case *For* Influence

- Judges Are Human Too
- Enforcement / Implementation
- Institutional Legitimacy
- Indirect / Remote Constraints

Courts and Public Opinion: Challenges

- Measurement
 - Who's Opinion?
 - On What?
 - When?
- Causal Path?
- “All Else Equal”

Judicial Decision-Making (So Far)



McGuire and Stimson (2004)

- Outcome: **Aggregate Court Liberalism**, by Term (1953-1996)
- Three Issue Areas
 - Criminal Procedure
 - Civil Rights and Liberties
 - Economics
- Only in Cases where the Court Reversed
- Predictor: Stimson's (1999) **Public Mood** indicator
 - Aggregation of public opinion survey responses
 - Created in 1991; currently available 1952-2024
 - A non-technical description is [here](#)

Findings:

- *Positive* associations between “mood” and SCOTUS voting
 - Criminal Procedure = 0.71
 - Civil Rights and Liberties = 0.78
 - Economics = 0.52
- Also related to a “latent” Court Liberalism measure

Replicating McGuire and Stimson (1952-2024)

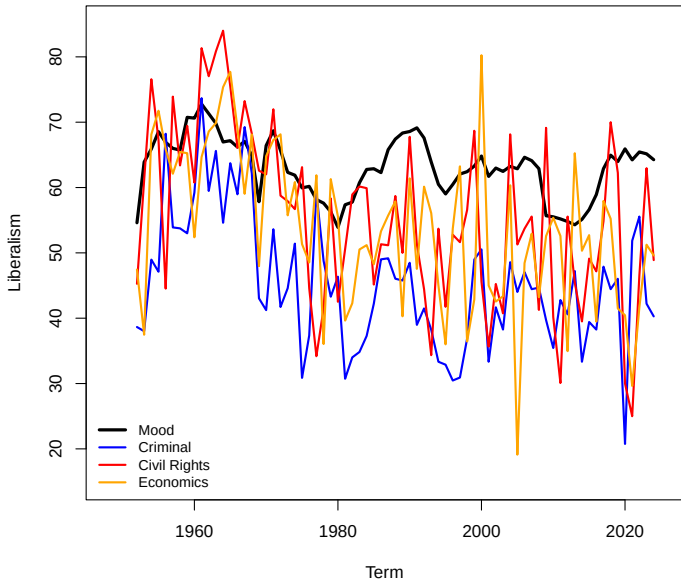
Data sources:

- Supreme Court Database for justices' votes
- Segal-Cover ideology measures
- Stimson's *Public Mood Database*

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> describe(TSDData)
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	vars	n	mean	sd	median	trimmed	mad	min	max	range	skew	kurtosis	se
term	1	73	1988.00	21.22	1988.00	1988.00	26.69	1952.00	2024.00	72.00	0.00	-1.25	2.48
Mood	2	73	63.06	4.60	63.28	63.16	4.31	53.90	72.78	18.88	-0.25	-0.70	0.54
SegalCover	3	73	45.55	17.68	40.06	43.98	14.66	24.17	83.11	58.94	0.78	-0.90	2.07
CrimLibPct	4	73	45.45	10.18	44.44	44.84	9.17	20.75	73.68	52.93	0.50	0.17	1.19
CLLibPct	5	73	55.42	13.21	55.56	55.38	15.26	25.00	84.00	59.00	0.03	-0.59	1.55
EconLibPct	6	73	53.63	11.98	52.94	53.77	13.60	19.12	80.25	61.13	-0.15	-0.24	1.40

Replicating McGuire and Stimson (1952-2024)

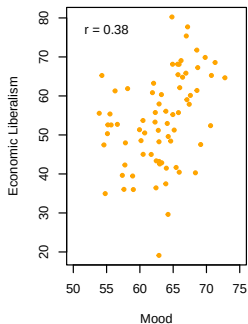
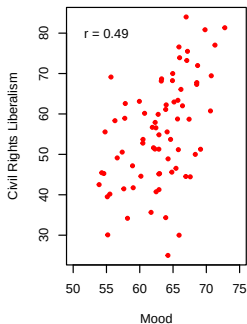
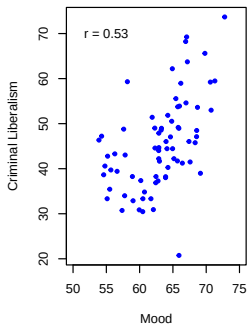


Correlations

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> cor(TSData)
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	term	Mood	SegalCover	CrimLibPct	CLLibPct	EconLibPct
term	1.000	-0.344	-0.824	-0.448	-0.507	-0.486
Mood	-0.344	1.000	0.356	0.527	0.492	0.377
SegalCover	-0.824	0.356	1.000	0.629	0.597	0.532
CrimLibPct	-0.448	0.527	0.629	1.000	0.476	0.512
CLLibPct	-0.507	0.492	0.597	0.476	1.000	0.498
EconLibPct	-0.486	0.377	0.532	0.512	0.498	1.000

Public Mood and Supreme Court Liberalism



Control Variables

- Previous decisions / precedent → “lagged” dependent variable
- Justices’ ideology → aggregated “Segal-Cover” scores

Regression Results

	<i>Dependent variable:</i>		
	Criminal (1)	Civil Liberties (2)	Economics (3)
Lagged Criminal	0.132 (0.110)		
Lagged Civil Liberties		0.059 (0.117)	
Lagged Economics			−0.059 (0.117)
Segal-Cover Liberalism	0.264*** (0.064)	0.363*** (0.085)	0.348*** (0.086)
Public Mood	0.643*** (0.215)	0.767** (0.304)	0.482* (0.289)
Constant	−13.000 (12.400)	−12.600 (17.200)	10.700 (17.700)
<i>N</i>	72	72	72
<i>R</i> ²	0.516	0.454	0.332
Adjusted <i>R</i> ²	0.494	0.429	0.302
Residual Std. Error (df = 68)	7.270	10.000	10.100
F Statistic (df = 3; 68)	24.100***	18.800***	11.200***

Note:

* $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$

Summary of Findings

1. We find evidence of public opinion's influence on Supreme Court behavior in *criminal procedure* and *civil rights/liberties* cases...
2. ...after controlling for (a) recent previous decisions and (b) overall Court ideology
3. Effect sizes:
 - All else equal, a ten-point increase in *Public Mood* liberalism is associated with an expected **6.4** percentage-point increase in the extent of liberal SCOTUS voting in criminal procedure cases
 - All else equal, a ten-point increase in *Public Mood* liberalism is associated with an expected **7.7** percentage-point increase in the extent of liberal SCOTUS voting in civil rights and liberties cases
 - All else equal, a ten-point increase in *Public Mood* liberalism is associated with an expected **4.8** percentage-point increase in the extent of liberal SCOTUS voting in economics cases
4. The strongest conditional relationship with *Public Mood* is in civil rights and liberties cases, while the weakest is in economics cases.